

23STCV08504 23STCV08504

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-17

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Case Number: 23STCV08504 Hearing Date: July 17, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:28 PM on July 16, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 16, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Defendant

funeral home was hired to distribute decedent's ashes in 30 wearable pendants to family members, but the pendants given to family members were empty.

Defendants

Candy Boyd, Reginald Boyd and Boyd Funeral Home demur to the Second Amended Complaint.

TENTATIVE RULING

Defendants

Candy Boyd, Reginald Boyd and Boyd Funeral Home's demurrer to the Second Amended Complaint is OVERRULED as to the second cause of action.

Defendants are to answer the Second Amended Complaint within 10 days.

ANALYSIS

Demurrer

Meet and Confer

The

Declaration of Kenneth O. Taylor reflects that Plaintiff's counsel did not respond to meet and confer efforts. This satisfies Civ. Proc. Code, § 430.41(a)(3)(B).

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Defendants

Candy Boyd, Reginald Boyd and Boyd Funeral Home demur to the Second Amended Complaint as follows:

1. Second Cause of Action (Fraud).

Defendants

argue that the 2AC fails to plead fraud with the requisite specificity and is uncertain.

A

demurrer for uncertainty is properly sustained where the complaint is so vague or

uncertain that the defendant cannot reasonably respond, i.e., when the defendant cannot determine what issues must be admitted or denied, or what counts are directed against the defendant. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial, *supra*, ¶ 7:85.) Demurrers for uncertainty are disfavored and strictly construed “because ambiguities can reasonably be clarified under modern rules of discovery.” (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135.)

“To establish a claim for deceit based on intentional misrepresentation, the plaintiff must prove seven essential elements: (1) the defendant represented to the plaintiff that an important fact was true; (2) that representation was false; (3) the defendant knew that the representation was false when the defendant made it, or the defendant made the representation recklessly and without regard for its truth; (4) the defendant intended that the plaintiff rely on the representation; (5) the plaintiff reasonably relied on the representation; (6) the plaintiff was harmed; and (7) the plaintiff's reliance on the defendant's representation was a substantial factor in causing that harm to the plaintiff. (Citations omitted.)” (*Manderville v. PCG&S Group, Inc.* (2007) 146 Cal.App.4th 1486, 1498 [*italics omitted*].)

It is true that in order for a defendant to be liable for fraud, he or she must intend that a particular representation (or concealment) be relied upon by a specific person or persons. (5 Witkin, Summary of Cal. Law, *supra*, Torts, § 707, at p. 807.) However, it is also established that a defendant cannot escape liability if he or she makes a representation to one person while intending or having reason to expect that it will be repeated to and acted upon by the plaintiff (or someone in the class of persons of which plaintiff is a member). (Citations omitted.)

(*Shapiro v. Sutherland* (1998) 64 Cal.App.4th 1534, 1548.)

The

2AC alleges at ¶¶ 15 – 18 as follows:

15. Before Plaintiffs

committed to paying for Defendants' services -- and thereafter as well - Defendants engaged in fraudulent representations and concealments in this regard including each and all of the following:

A. On or about

the afternoon of January 15, 2021, at the Boyd Funeral Home, Defendant Candy Boyd represented to Plaintiff Shawn Seymore and Sherry Seymore ("Shawn and Sherry") that Defendants would carefully handle the remains of Plaintiffs' mother and would place her ashes into thirty pendants so that her children and other family members could keep her close to themselves. In fact, Ms. Boyd had no intention -- and knew that the other Defendants had no intention -- of placing Plaintiffs' mother's ashes into the pendants.

B. In making the foregoing representations, Ms. Boyd knew that Shawn and Sherry would communicate her words to the other bereaved members of the family and intended to induce their reliance on such representations. Ms. Boyd also knew the representations to be false. She also concealed from Shawn and Sherry that Defendants practice was to charge for services with respect to the Pendants that they had no intention to deliver.

C. In consultation with other family members, and in reliance upon Ms. Boyd's concealments and in their ignorance of the facts that Ms. Boyd concealed, the late Ms. Seymore's children paid Defendants' asking price for their funeral services -- something they would not have done had they been told the truth by Ms. Boyd.

D. In engaging in the foregoing fraudulent acts, Ms. Boyd was acting on behalf of the other Defendants as part of both (a) Defendants' particular plan and with the express authorization to defraud Plaintiffs' family and (b) Defendants' general scheme to defraud the public.

E. In the alternative, to the extent that the Defendants did not put Decedent's ashes into the pendants due to Mr. Boyd's physical capacity (as Defendants would later contend), Defendant Candy Boyd deliberately defrauded Plaintiffs in the afternoon of January 15, 2021 by representing to Shawn and Sherry that Defendants were capable of delivering services that Defendant Candy Boyd knew they could not deliver.

16. The pendants were all discovered to be empty in the latter half of April of 2021, and Ms. Seymore's ashes which were withdrawn from her other cremated remains are missing and unaccounted for. When informed of this mis-, mal- and non-feasance on the part of the Boyds, the Boyds offered the explanation that Mr. Boyd has dementia and, on account of his ailment or disability, the remains of the Seymores' mother, Imogene Elizabeth

Seymore were mishandled and that this is why when the pendants were given to the Seymores, all of the pendants were empty (the "Feeble Explanation").

17. In fact, Plaintiffs

are informed and believe and thereon allege that the Boyds and their company have engaged in a pattern and practice of representing to Plaintiffs and others that they will prepare pendants containing the ashes of their loved ones, among other services (the "Fraudulent Representations"), and have deliberately failed to perform same, assuming that their failures to act will not be discovered and (that they would be able to charge a premium for unearned services while avoiding the costs of actually providing the same to their customers (the "Fraudulent Scheme"). In offering up the Fraudulent Representations to Plaintiffs and other similarly situated consumers in their time of grief, the Defendants encouraged and invited Plaintiffs and such consumers to place their trust in the Defendants, and in so doing took on fiduciary duties to the Plaintiff and other similarly situated consumers. Plaintiffs, for their part, accepted the invitation and put their trust in the Boyds, much to their later regret.

18. Even if Defendants'

Feeble Explanation for their wrong-doing were truthful (which Plaintiffs are informed and believes is not the case), such explanation suggests that the Boyd's have taken on duties to the Plaintiff and other similarly situated consumers but have tasked one or more persons without the ability to carry out those duties with fulfilling their obligations to their customers (including Plaintiff), without any reasonable basis for believing those obligations will be carried out appropriately, thereby breaching their fiduciary duties to the Plaintiff and other consumers and thereby defrauding them.

(2AC, ¶¶ 15 – 18 [bold emphasis added].)

The

foregoing allegations are sufficient to meet the specificity requirements required to plead fraud.) "The sole issue raised by a general demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. No matter how unlikely or improbable, plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (Citation omitted.) Furthermore, plaintiff's possible inability or difficulty in proving the allegations of the complaint is of no concern. (Citation omitted.)" (Kerivan v. Title Ins. & Trust Co. (1983) 147 Cal.App.3d 225, 229.)

The

demurrer to the second cause of action is OVERRULED.

Defendants

are to answer the Second Amended Complaint within 10 days.